

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT			1. CONTRACT ID CODE J		PAGE 1 OF 1 PAGES		
2. AMENDMENT/MODIFICATION NUMBER 0001		3. EFFECTIVE DATE 21-May-2025		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable)	
6. ISSUED BY NAVFACSYS COM M ID-ATLANTIC CONTRACTING CORE 9324 VIRGINIA AVENUE NORFOLK VA 23511- 3095		CODE N40085		7. ADMINISTERED BY (If other than Item 6) See Item 6		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				☒		9A. AMENDMENT OF SOLICITATION NUMBER N4008524R2861	
				☒		9B. DATED (SEE ITEM 11) 13-May-2025	
				☐		10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
CODE				FACILITY CODE		10B. DATED (SEE ITEM 13)	
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS							
☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☒ is extended. ☐ is not extended. Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.							
12. ACCOUNTING AND APPROPRIATION DATA (If required)							
13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.							
CHECK ONE		A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.					
☐							
☐		B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).					
☐		C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:					
☐		D. OTHER (Specify type of modification and authority)					
E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.							
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.) N4008624R2861 Regional Electric Utility Tree Trimming and Ground Cleaning Services. This amendment is issued to provide pre-proposal inquiries and responses, extend the proposal due date from 12 June 2025 to 17 June 2025, and incorporate clauses 52.219-17 and 252.219-7009. In addition, provide a revised Section J, J-0200000 Table of Contents, Section L, L.6 Site Visit, and incorporate Section J, J-0200000-12 Site Visit Access Form via attachment.							
Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.							
15A. NAME AND TITLE OF SIGNER (Type or print)				16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)			
15B. CONTRACTOR/OFFEROR				15C. DATE SIGNED		16B. UNITED STATES OF AMERICA	
(Signature of person authorized to sign)						(Signature of Contracting Officer)	

Pre-Proposal Inquiries & Responses

1. Inquire on the current contract number and value. Has the scope of work changed in the current solicitation?

Response: The current contract number is N4008520D0062. Per the award synopsis posted on SAM.gov on 15 August 2020, the awarded amount was \$4,000,000.00. The Government does not provide a comparison between the current contract and the new procurement. The solicitation, attachments and all documents have been provided for the new contract. The new contract stands on its own and the documents should be reviewed in that manner.

2. Requesting additional information or clarification regarding the application of herbicide to achieve vegetation control.

Response: To determine when herbicide use is necessary or ordered, refer to Section J, Attachment J-0200000-08 ELINs, items A715 and A716. For guidance on pesticide/herbicide usage, refer to Section J, Attachments J-1503050-04, J-1503050-05, and J-1503050-06. Additionally, Section J, Attachment J-1503050-07 provides historical data on past herbicide usage.

3. What is the date of the site visit?

Response: See Revised Section L. L.6 Site Visit.

Section L - Instructions, Conditions and Notices to Bidders

INSTRUCTIONS TO OFFERORS

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L.1 Contractor Proposal Certification:

Contractor is required to certify in writing on page 1 of the proposal the following:

_____ (Name of Offeror) warrants that its proposal
_____ (of date or other Identifier) incorporated herein by reference, including, but not limited to, proposed approaches, staffing, methodology, or work plans, will meet the performance objectives set forth in this contract during the execution thereof. The contractor is not excused from meeting such performance objectives. The contractor understands that it bears all of the cost and performance risk associated with adopting acceptable additional (and/or alternative) means or methods of meeting the performance objective.

L.2 Contractor Payment Schedule:

Reserved.

L.3 Inquiries:

All questions from offerors concerning any aspect of this request for proposal (RFP) must be submitted in writing. Prospective offerors are requested to submit written questions specifying the section and paragraph of the specification for which clarification is desired. All inquiries will be answered in writing. Telephone questions will not be entertained. Offerors are specifically cautioned that verbal discussions and replies to questions shall not have the effect of changing the provisions of the written RFP.

All questions must be submitted at least 10 days before proposals are due, or the Government may not respond. This is the most efficient way to ensure all questions are addressed in a timely manner.

Pre-Proposal Inquires shall be electronically sent to Chamel Adams, Contract Specialist, at the following email address: chamel.r.adams.civ@us.navy.mil

L.4 Disposition of Proposals:

Proposals from unsuccessful offerors will not be returned to the offeror, but shall be destroyed by the Contracting Officer. No certificate of destruction will be issued.

L.5 Content of Proposal:

(a) Non-cost/price Factors Submission Requirements: The offeror shall submit one (1) electronic copy marked original via PIEE to including all the solicitation submittal requirements identified below. See Section B.22 of this RFP for more information about submitting proposals via PIEE Solicitations. In addition, non- price/technical information included in the price proposal will not be considered, likewise, price information included in the nonprice/technical proposal will not be considered. All required proposal documents shall be submitted in accordance with FAR 15.208.)

- 8 ½ x 11 format;
- No smaller than 10-point Arial or Times New Roman font;
- 100-page limit (inclusive of all charts, forms and other documentation responsive to the solicitation requirements

except as noted below), pages sequentially numbered;

- Include a cover page with Contract Number, Contract Title, Prime Contractor Name, Address, Phone Number, Fax Number, Unique Entity ID, Cage Code, Point of Contact and their phone and email address;

- Include only information in response to Factors 1, 2, 3 and 4 separated by tabs, as applicable;
- Provide signed JV Agreement or SBA approved Mentor-Protégé Agreement (if applicable); and
- The non-cost/price proposal shall include responses to each non-cost/price factor as specified in Section M;
- Provide signed JV Agreement or SBA approved Mentor-Protégé Agreement (if applicable); and
- The non-cost/price proposal shall include responses to each non-cost/price factor as specified in Section M;

NOTE: Offerors are cautioned that merely repeating the Performance Work Statement Performance Objectives, with a statement of intent to perform, does not reflect an understanding of the requirement or capability to perform, and may result in finding that the proposal is Unacceptable for that factor.

The following are not included in the 100-page limitation: Price proposals, JV Agreements, CPARS for projects submitted under Factor 2, Corporate Experience. Pages exceeding the 100-page limitation shall not be considered during evaluation of the proposal.

(b) Price:

(i) Price Submittal Requirements: The offeror shall submit one (1) electronic copy marked original via PIEE to including all the solicitation submittal requirements identified below. See Section B.22 of this RFP for more information about submitting proposals via PIEE Solicitations. In addition, non-price/technical information included in the price proposal will not be considered, likewise, price information included in the non-price/technical proposal will not be considered. All required proposal documents shall be submitted in accordance with FAR 15.208.)

- Include a cover page with Solicitation Number, Solicitation Title, Prime Contractor Name, Address, Phone Number, Fax Number, Unique Entity ID, Cage Code and Point of Contact (POC) with their phone number and email address;
- Signed Solicitation, Offer and Award Forms (SF33), including Section B (CLINs 0001 through 0006), with all amendments acknowledged;
- Attachment J-0200000-08 (Exhibits A through F). Pricing shall only go **two decimal places**. This includes Offerors ensuring the Excel pricing cells do not include additional, hidden decimal places.
- If applicable, where Exhibit Line Items/sub Exhibit Line Items contain a quantity of zero or a blank quantity, unit pricing shall be provided in the event future quantities are added;
- The Unique Entity ID and/or CAGE for all the Offeror's team members (e.g. Partnership, joint venture, teaming arrangement, or parent company/subsidiary/affiliate) identified in the proposal; and
- Completed Contractor Proposal Certification (See Section L, Paragraph 1)
- SAM registration. Offeror shall ensure current registration on the SAM Website, www.sam.gov, including Annual Representations and Certifications are complete and updated for this procurement. If a Representation or Certification required by Section K of the RFP is not provided in SAM, include the representation or certification in your price proposal.
- FAPIIS. Offeror shall ensure Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete, as required by FAR 52.209-7, Information Regarding Responsibility Matters.

VETS-4212 registration. Confirmation of filing of Veterans' Employment and Training (VETS-4212) for the 2023 filing cycle, if the Offeror is required to submit. Offeror shall ensure a current VETS-4212 report has been submitted to the Department of Labor (DOL) website, <http://www.dol.gov/vets/vets4212.htm>. An email confirmation of submission can be requested and received by the Offeror from the DOL website and submitted in the price proposal. If the Offeror is not required to submit a report to VETS-4212, include a brief statement and justification explaining why the Offeror is not required to submit a report. Visit the VETS-4212 website for details concerning if your company is required to submit a VETS-4212 report and to request an email confirmation of submission.

ADDITIONAL INFORMATION TO BE SUBMITTED WITH PRICE PROPOSAL PACKAGE:

RESPONSIBILITY DETERMINATION INFORMATION – In order to be eligible for award, the offeror must be determined responsible in accordance with FAR Part 9, specifically 9.104-1, General Standards. In a separate tab, the offeror shall provide the following information in the price proposal package:

1. Provide name of financial institution, point of contact, telephone number, and email address. Provide a signed statement of release giving the reference permission to release the information to the Navy.
2. One (1) signed bank reference demonstrating adequate financial resources. If offeror's firm has a line of credit, provide information on how many figures offeror can borrow against the line of credit (i.e. medium 6 figures– exact line of credit is not required).
3. The offeror shall provide the latest three complete fiscal year financial statements for the prime contractor, certified by an independent accounting firm, if practicable, or signed by an authorized officer of the organization. Submit evidence of availability of working/operating capital, which will be used for the performance of the resultant contract. For Joint Venture arrangements, submit the latest three complete fiscal year financial statements for each company in the Joint Venture and discuss the financial responsibilities among the companies. The Government may also utilize Dun & Bradstreet reports to evaluate the financial capacity of the offeror.
4. Description of offeror's facilities and equipment.
5. Other offeror's work presently under contract.

Offerors are not required to submit financial information as detailed in the price submission instructions via PEE Solicitation Module. Should the Offeror choose not to submit the above detailed Responsibility Determination Information via PEE Solicitation Module, it shall be submitted via email to the Government's point of contact identified in Factor 4, Past Performance.

Although required to be submitted with offeror's price proposal, this information will not be evaluated as part of the price proposal. This information will be used as the basis of your firm's responsibility determination should your firm be considered for award.

L.6 SITE VISIT

A site visit will be conducted on 28 May 2025 at 9:00am for Norfolk Naval Shipyard Portsmouth.

Please meet at the Pass and ID office at 12:00pm, BLDG 1502, located at 2900 Effingham Street, Portsmouth, Virginia 23709.

Site Visit Registration Requirements: You must send the completed base access form (J-0200000-12) to Ms. Chanel Adams at chamel.r.adams.civ@us.navy.mil by Tuesday, 27 May 2025 at 10:00 A.M.. Attendees must be US Citizens and must present a valid photo ID with the real ID or 2 forms of ID. You must also have a valid driver's license, registration and proof of insurance in order to gain access to the base.

NOTE: As of 24 December 2013, DOD now requires all individuals not associated with the military WILL provide two (2) forms of valid state or federal government issued identifications. For a list of acceptable forms please refer to the Form I-9 (<http://www.uscis.gov/i-9>), page 9.

Section J – 0200000
Management and Administration

Attachment Number	Attachment Title
J-0200000-01	Definitions and Acronyms
J-0200000-02	Wage Determinations
J-0200000-03	Directives, Instructions, and References
J-0200000-04	Invoice Form
J-0200000-05	Forms
J-0200000-05-01	NNSY Service Interruption Request
J-0200000-05-02	Critical Lift Plan
J-0200000-05-03	Contractor Incident Report System (CIRS)
J-0200000-05-04	Crane And Rigging Gear Accident Report
J-0200000-05-05	Crane And Rigging Gear Near Miss Report
J-0200000-05-06	Monthly On-Site Labor Report
J-0200000-05-07	Contractor Hazardous Material Inventory Log
J-0200000-05-08	Emission Data Tracking
J-0200000-05-09	Transfer, Handling and Storage Procedure Inspection Form
J-0200000-06	Installation Spill Prevention, Control, and Countermeasure Plan
J-0200000-06-01	Installation NNSY Spill Control Plan
J-0200000-07	Solid Waste Management NNSY
J-0200000-08	Exhibit Line Item Numbers (ELINs)
J-0200000-09	PIEE Vendor Access Instructions
J-0200000-10	Corporate Experience Data Sheet
J-0200000-11	Past Performance Questionnaire
J-0200000-12	Base Access Form

52.219-17 SECTION 8(a) AWARD (OCT 2019)

(a) By execution of a contract, the Small Business Administration (SBA) agrees to the following:

(1) To furnish the supplies or services set forth in the contract according to the specifications and the terms and conditions by subcontracting with the Offeror who has been determined an eligible concern pursuant to the provisions of section 8(a) of the Small Business Act, as amended (15 U.S.C. 637(a)).

(2) Except for novation agreements, delegates to the NAVFAC MIDLANT ACQ3 the responsibility for administering the contract with complete authority to take any action on behalf of the Government under the terms and conditions of the contract; provided, however that the contracting agency shall give advance notice to the SBA before it issues a final notice terminating the right of the subcontractor to proceed with further performance, either in whole or in part, under the contract.

(3) That payments to be made under the contract will be made directly to the subcontractor by the contracting activity.

(4) To notify the NAVFAC MIDLANT ACQ3 Contracting Officer immediately upon notification by the subcontractor that the owner or owners upon whom 8(a) eligibility was based plan to relinquish ownership or control of the concern.

(5) That the subcontractor awarded a subcontract hereunder shall have the right of appeal from decisions of the cognizant Contracting Officer under the "Disputes" clause of the subcontract.

(b) The offeror/subcontractor agrees and acknowledges that it will, for and on behalf of the SBA, fulfill and perform all of the requirements of the contract.

(End of clause)

252.219-7009 SECTION 8(A) DIRECT AWARD (OCT 2018)

(a) This contract is issued as a direct award between the contracting office and the 8(a) Contractor pursuant to the Partnership Agreement between the Small Business Administration (SBA) and the Department of Defense. Accordingly, the SBA, even if not identified in Section A of this contract, is the prime contractor and retains responsibility for 8(a) certification, for 8(a) eligibility determinations and related issues, and for providing counseling and assistance to the 8(a) Contractor under the 8(a) Program. The cognizant SBA district office is:

Richmond, Virginia SBA District
Office 400 North 8th Street, Suite 1150
Richmond, VA 23219-4820

(b) The contracting office is responsible for administering the contract and for taking any action on behalf of the Government under the terms and conditions of the contract; provided that the contracting office shall give advance notice to the SBA before it issues a final notice terminating performance, either in whole or in part, under the contract. The contracting office also shall coordinate with the SBA prior to processing any novation agreement. The contracting office may assign contract administration functions to a contract administration office.

(c)The 8(a) Contractor agrees that it will notify the Contracting Officer, simultaneous with its notification to the SBA (as required by SBA's 8(a) regulations at 13 CFR 124.515), when the owner or owners upon whom 8(a) eligibility is based plan to relinquish ownership or control of the concern. Consistent with section 407 of Public Law 100-656, transfer of ownership or control shall result in termination of the contract for convenience, unless the SBA waives the requirement for termination prior to the actual relinquishing of ownership and control.

(End of Clause)

J-0200000-12 Base Access Form

[illegible]